

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

----- X
MARK BROASTER THOMPSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE FRANK
RECCA, Tax No. 951120, POLICE OFFICER TRACEY
ROONEY, Tax No. 953338, DETECTIVE JUSTIN
SOLOMON, Tax No. 946280. POLICE OFFICER DEVON
WILLIAMS, Tax No. 966907, POLICE OFFICER DIANA
NERGUTI, Tax No. 964679, POLICE OFFICER JOSEPH
DIPAOLLO, Tax No. 955886, SERGEANT CHRISTOPHER
SCHIRO, Tax No. 956244, and POLICE OFFICERS JOHN
DOES #s 1-10 (names and number of whom are unknown at
present),

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
October 7, 2022

Yours, etc.

David Hazan

JACOBS & HAZAN, PLLC.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: THE CITY OF NEW YORK, NYC Office of the Corporation Counsel, 100 Church Street, New York, New York 10007
DETECTIVE FRANK RECCA, Tax No. 951120,
POLICE OFFICER TRACEY ROONEY, Tax No. 953338,
DETECTIVE JUSTIN SOLOMON, Tax No. 946280.
POLICE OFFICER DEVON WILLIAMS, Tax No. 966907,
POLICE OFFICER DIANA NERGUTI, Tax No. 964679,
POLICE OFFICER JOSEPH DIPAOLO, Tax No. 955886,
SERGEANT CHRISTOPHER SCHIRO, Tax No. 956244

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

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MARK BROASTER THOMPSON,

Plaintiff,

-against-

INDEX NO.:

VERIFIED COMPLAINT

THE CITY OF NEW YORK, DETECTIVE FRANK
RECCA, Tax No. 951120, POLICE OFFICER TRACEY
ROONEY, Tax No. 953338, DETECTIVE JUSTIN
SOLOMON, Tax No. 946280. POLICE OFFICER
DEVON WILLIAMS, Tax No. 966907, POLICE
OFFICER DIANA NERGUTI, Tax No. 964679, POLICE
OFFICER JOSEPH DIPAOLO, Tax No. 955886,
SERGEANT CHRISTOPHER SCHIRO, Tax No. 956244,
and POLICE OFFICERS JOHN DOES #s 1-10 (names and
number of whom are unknown at present),

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff MARK BROASTER THOMPSON, by his attorneys, Jacobs & Hazan, PLLC, as
and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on, Brooklyn October 7, 2019 at approximately 10:00 am, plaintiff was lawfully present inside of the 121st Precinct located at 970 Richmond Avenue, Staten Island, New York, when defendants unlawfully searched, falsely arrested, denied plaintiff the right to due process/ right to a fair trial, and maliciously prosecuted plaintiff, without probable cause or any legal justification. Thereafter, plaintiff was transported to Richmond County Central Booking whereat the unlawful detention continued. The defendants provided the District Attorney's Office with false, misleading, and incomplete evidence to justify their basis for arresting plaintiff and charging him with crimes. The officers false, misleading, and incomplete allegations against plaintiff formed the basis for a criminal prosecution being initiated against him, without probable cause. Plaintiff was unlawfully detained in a holding cell at the 121st Precinct for many hours and then he was transported to Richmond County Central Booking, against his will, whereat the unlawful detention continued until plaintiff was arraigned in

Richmond County Criminal Court on October 8, 2019, at 11:55 pm, approximately 38 hours after he was initially arrested by defendants. The Court dismissed and sealed all criminal charges brought against plaintiff in the Interest and Furtherance of Justice on October 14, 2020, after the Court and plaintiff's criminal defense attorney were informed that defendant Police Officer Rooney was disciplined by the NYPD, in part for fabrication the allegations against plaintiff. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, and falsely arrested plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff MARK BROASTER THOMPSON is a resident of the state of New Jersey.

3. Defendant DETECTIVE FRANK RECCA, Tax No. 951120, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant DETECTIVE FRANK RECCA, Tax No. 951120, was at all times relevant herein, assigned to the 121st Precinct Detective Squad and is presently assigned to the Detective Bureau Staten Island Precinct Operations.

5. Defendant DETECTIVE FRANK RECCA, Tax No. 951120, is being sued in his individual and official capacity

6. Defendant POLICE OFFICER TRACEY ROONEY, Tax No. 953338, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant POLICE OFFICER TRACEY ROONEY, Tax No. 953338, was at all times relevant herein, assigned to the 121st Precinct, and is presently assigned to the Emergency Services Unit Canine Team.

8. Defendant POLICE OFFICER TRACEY ROONEY, Tax No. 953338, is being sued in her individual and official capacity.

9. Defendant DETECTIVE JUSTIN SOLOMON, Tax No. 946280, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant DETECTIVE JUSTIN SOLOMON, Tax No. 946280, is and was at all times relevant herein, assigned to the 121st Precinct Detective Squad.

11. Defendant DETECTIVE JUSTIN SOLOMON, Tax No. 946280, is being sued in his individual and official capacity.

12. Defendant POLICE OFFICER DEVON WILLIAMS, Tax No. 966907, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. Defendant POLICE OFFICER DEVON WILLIAMS, Tax No. 966907, was at all times relevant herein, assigned to the 121st Precinct.

14. Defendant POLICE OFFICER DEVON WILLIAMS, Tax No. 966907, is being sued in his individual and official capacity.

15. Defendant POLICE OFFICER DIANA NERGUTI, Tax No. 964679, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. Defendant POLICE OFFICER DIANA NERGUTI, Tax No. 964679, is and was at all times relevant herein, assigned to the 121st Precinct.

17. Defendant POLICE OFFICER DIANA NERGUTI, Tax No. 964679, is being sued in his individual and official capacity.

18. Defendant POLICE OFFICER JOSEPH DIPAOLO, Tax No. 955886, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. Defendant POLICE OFFICER JOSEPH DIPAOLO, Tax No. 955886, is and was at all times relevant herein, assigned to the 121st Precinct.

20. Defendant POLICE OFFICER JOSEPH DIPAOLO, Tax No. 955886, is being sued in his individual and official capacity.

21. Defendant SERGEANT CHRISTOPHER SCHIRO, Tax No. 956244, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

22. Defendant SERGEANT CHRISTOPHER SCHIRO, Tax No. 956244, was at all times relevant herein, assigned to the 121st Precinct and is currently assigned to the Uniformed Promotions Training Unit.

23. Defendant SERGEANT CHRISTOPHER SCHIRO, Tax No. 956244, is being sued in his individual and official capacity.

24. Defendants New York City Police Officers John Does #s 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

25. Defendants New York City Police Officers John Does #s 1-10 are being sued in their individual and official capacities.

26. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

27. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

28. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

29. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

30. On October 7, 2019, at approximately 10:00 am, plaintiff was lawfully present inside of the 121st Precinct located at 970 Richmond Avenue, Staten Island, New York, when defendants unlawfully searched, falsely arrested, denied the right to due process/ right to a fair trial, and maliciously prosecuted plaintiff, without probable cause or any legal justification.

31. Prior to October 7, 2019, plaintiff was contacted via telephone repeatedly by the individually named defendant NYPD officers, who told plaintiff to come to the 121st precinct so that they could speak with him.

32. Although the defendants did not tell plaintiff what they wanted to speak with him about, plaintiff respected law enforcement and wanted to do everything he could to assist the officers.

33. Plaintiff felt comfortable going to the precinct and speaking to police officers because he knew he did not commit a crime or violate the law in any way.

34. Therefore, on October 7, 2019, at approximately 10:00 am plaintiff arrived at the 121st Precinct located at 970 Richmond Avenue, Staten Island, NY to speak with the NYPD officers who asked him to come to the precinct to speak with them.

35. . What occurred after plaintiff arrived at the precinct shocked plaintiff.

36. . Defendants immediately and unlawfully handcuffed plaintiff and falsely arrested him, without probable cause or legal justification as soon as he arrived at the 121st Precinct.

37. The defendants unlawfully searched, fingerprinted, photographed, interrogated, and detained plaintiff in a holding cell at the 121st Precinct for many hours.

38. At no time relevant herein did plaintiff violate the law or commit a crime, nor did the officers possess objective facts to establish probable cause to establish probable cause to believe he committed a crime.

39. The defendants provided the Richmond County District Attorney's Office with false, misleading, and incomplete evidence to support their purported basis for arresting plaintiff and charging him with crimes.

40. Plaintiff was unlawfully detained in a holding cell at the 121st Precinct for many hours and then he was transported to Richmond County Central Booking, against his will, whereat the unlawful detention continued until plaintiff was arraigned in Richmond County Criminal Court on October 8, 2019, at 11:55 pm, approximately 38 hours after he was initially arrested by defendants.

41. At arraignment, plaintiff was falsely charged with committing crimes he did not commit that allegedly occurred approximately three months earlier, on July 9, 2019, including but not limited to Assault in the Third Degree, Resisting Arrest, and Obstructing Governmental Administration in the Second Degree.

42. Defendants fabricated the allegations made against plaintiff that were sworn to under the penalty of perjury in the criminal court complain.

43. Defendants falsely alleged that on July 9, 2019, at 8:00 pm, in front of 55 Holland Avenue, Staten Island, New York, plaintiff grabbed defendant Police Officer Tracey Rooney's shoulder, causing her to fall to the ground, and then prevented another defendant officer from arresting him by yanking his arm loose from the grasp of the officer and running away.

44. Defendant Police Officer Tracey Rooney fabricated the allegations against plaintiff to support the criminal charges brought against him.

45. Defendant Police Officer Rooney, alleged that, on July 9, 2019, at approximately 8:00 pm, she responded to an Assault in progress at 55 Holland Avenue, Staten Island, New York.

46. Defendant Police Officer Rooney alleges that upon arriving at the scene of the assault in progress she backed up another unit already on scene and was conducting crowd control.

47. Defendant Police Officer Rooney further alleges that while she was assisting the other unit, she was confronted by “an individual known to the NYPD” from behind and the individual grabbed her back, causing her to retaliate.

48. Defendant Police Officer Rooney further claims that while she was retaliating against the man who grabbed her back, she was confronted by “an unknown male” black who flailed his arms, causing defendant Police Officer Rooney to sprain her right shoulder.

49. Defendant Rooney alleged that the unknown Black male was not apprehended and fled the scene on foot.

50. Approximately 3 months after the underlying incident, defendant Police Officer Rooney falsely alleged that plaintiff was the “unknown black male” who flailed his arms.

51. Defendant Police Officer Rooney’s version of events changed dramatically from the date of the incident to October 7, 2019, the date of plaintiff’s arrest.

52. The day after the alleged July 9, 2019, incident, defendant Police Officer Rooney alleged that an individual grabbed her back, causing her to retaliate against him, and the only allegation she made against the unknown male black who she later identified as plaintiff, was that he flailed his arms and caused defendant PO Rooney to sprain her right shoulder.

53. Defendant Police Officer Rooney’s version of events changed dramatically three months later when Mark Broaster was arrested.

54. On October 7, 2019, defendant Police Officer Rooney no longer made accusations against the other individual who allegedly jumped on her back. Instead, she amended her version of events and falsely alleged that plaintiff grabbed her shoulder on July 9, 2019, causing her to fall to the ground and suffer injuries, including bruising, and substantial pain and swelling to her shoulder.

55. The allegations against plaintiff contained in the Criminal Court Complaint were completely fabricated by Police Officer Rooney, and she completely altered her previous version of events to justify how she was injured to her superiors at the NYPD.

56. Upon information and belief, defendant Police Officer Rooney’s injuries were actually caused when she used excessive force against a female at the scene of the July 9,

2019 incident and defendant Police Officer Rooney fabricated allegations against plaintiff to cover up the fact that she used force against another individual and to avoid any investigation into whether she used the appropriate level of force against the female.

57. . However, defendant Police Officer Rooney was ultimately not successful at covering up the excessive force that she used against the female, and after an investigation into her conduct was conducted by the CCRB, the CCRB and the NYPD found that defendant Police Officer Rooney used excessive force against a female when she responded to the assault in progress on July 9, 2019.

58. Upon information and belief, defendant Police Officer Rooney was disciplined by the NYPD for using excessive force against the female.

59. The Court dismissed and sealed all criminal charges brought against plaintiff in the Interest and Furtherance of Justice on October 14, 2020 after the Court and plaintiff's criminal defense attorney were informed that defendant Police Officer Rooney was disciplined by the NYPD for using excessive force against the female during the July 9, 2019 incident, and that defendant Police Officer Rooney's version of events changed dramatically from July 10, 2019 to October 7, 2019, the date of plaintiff's arrest, for the purpose of covering up the unlawful use of force.

60. . The criminal proceedings terminated in plaintiff's favor, and upon information and belief, at the conclusion of plaintiff's criminal prosecution, all parties, including the Court, understood that defendant Police Officer Rooney fabricated the allegations against plaintiff that were used to establish probable cause in the criminal prosecution/

61. Defendants' unlawful and unconstitutional conduct caused plaintiff to endure being arrested for the first time in his life, for crimes he did not commit.

Moreover, plaintiff suffered extreme emotional distress from having to address the false charges brought against him in the criminal prosecution which lasted for more than a year.

62.

63. Plaintiff was released from custody on his own recognizance at arraignment.

64. Plaintiff was required to make seven court appearances in Richmond County Criminal Court to address the false criminal charges brought against him and endure a criminal prosecution that lasted over a year.

65. All charges brought against plaintiff terminated in his favor and were dismissed and sealed by the court in their entirety in the Interest and Furtherance of Justice on October 14, 2020.

66. The defendant officers' false, misleading, and incomplete allegations against plaintiff formed the basis for a criminal prosecution being initiated against him, without probable cause.

67. The defendant police officers lacked probable cause to arrest plaintiff.

68. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the officers have an objective factual basis to suspect plaintiff violated the law.

69. Defendants unlawfully searched plaintiff without probable cause.

70. Defendants did not recover any illegal drugs, weapons, or contraband on plaintiff or from plaintiff's possession, custody, or control pursuant to the unlawful frisk and search of plaintiff's person.

71. At no time relevant herein did plaintiff violate the law or behave in a manner that would have given defendants reasonable suspicion or probable cause to believe plaintiff violated the law, was violating the law or was about to violate the law.

72. At all times relevant herein defendants lacked probable cause to arrest plaintiff.

73. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

74. There have been hundreds of lawsuits and Notices of Claims filed with the City of New York, and complaints filed with the Civilian Complaint Review Board by members of the public alleging that NYPD police officers continue to engage in said unconstitutional and unlawful behavior, but the NYPD has not taken reasonable steps to ensure that its officers follow the NYPD's current written policies and training regarding these issues and has not retrained or disciplined its officers for continuing to behave in an unlawful and unconstitutional manner toward members of the public under these circumstances, even when the officers admit to engaging in unconstitutional behavior like the officers did in the underlying incident involving plaintiff in this case.

75. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently pervasively continue to unlawfully and unconstitutionally stop, question, frisk, search and falsely arrest members of the public without probable cause.

76. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful stop, question, frisk, search, false arrest, and false imprisonment because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully stop, question, frisk, search and falsely arrest members of the public without probable cause.

77. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior for decades and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

78. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

79. The unlawful stop, question, frisk, search, false arrest and false imprisonment, malicious prosecution, and denial of due process/ right to a fair trial of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

80. The unlawful stop, question, frisk, search, false arrest and false imprisonment, malicious prosecution, and denial of due process/ right to a fair trial of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth, Fifth, and Fourteenth Amendment Rights

81. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 80- with the same force and effect as if more fully set forth at length herein.

82. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, searched, seized, falsely arrested, falsely imprisoned, and maliciously prosecuted without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

83. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 82 with the same force and effect as if more fully set forth at length herein.

84. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

85. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

86. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

87. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question and Frisk

88. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 87 with the same force and effect as if more fully set forth at length herein.

89. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

90. The conduct of defendants in stopping, questioning, frisking, and searching, plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

91. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

92. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

93. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

94. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 93 with the same force and effect as if more fully set forth at length herein.

95. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein, terminated plaintiff's freedom of movement through means intentionally applied.

96. Defendants lacked probable cause to search plaintiff.

97. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

98. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

99. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

100. Plaintiff repeats and realleges paragraphs 1 through 99 as if fully set forth herein.

101. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York, and New York State common law.

102. Defendants commenced and continued a criminal proceeding against plaintiff.

103. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

104. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

105. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

106. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment and Fourteenth Amendment Rights Denial of Due Process/ Right to a Fair Trial

107. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 106 with the same force and effect as if fully set forth herein.

108. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Richmond County District Attorney's Office.

109. Defendants filled out false and misleading police reports and a summons and forwarded them to the Richmond County Criminal Court.

110. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process/ a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

111. As a result of the foregoing, plaintiff, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings, and deprivation of his constitutional rights.

112. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Failure to Intervene

113. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 112 with the same force and effect as if more fully set forth at length herein.

114. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

115. Defendants failed to intervene to prevent the unlawful conduct described herein.

116. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

117. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

EIGHTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Deliberate Indifference When NYPD Officers Violate the Fourth, Fifth and Fourteenth Amendments to the United States Constitution

118. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 117 with the same force and effect as if more fully set forth at length herein.

119. Plaintiff was unlawfully searched, interrogated, frisked, falsely arrested plaintiff, maliciously prosecuted, denied the right to due process, and subjected to the use of excessive force without an objective factual legal basis to seize, arrest and prosecute plaintiff pursuant to an unconstitutional policy and practice of the NYPD that is deliberately indifferent to the fact that many NYPD officers, including defendants engage in this type of misconduct on a regular basis without being disciplined and/ or retrained.

120. There is a policy, practice, or custom within the New York City Police Department, wherein New York City Police Officers illegally frisk, search, interrogate, falsely arrest, and fabricate evidence, without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

121. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently and pervasively continue to unlawfully and unconstitutionally violate the Fourth, Fifth, and Fourteenth Amendment Rights of members of the public.

122. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful frisk, search, interrogation, and false arrest of plaintiff because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully search, and falsely arrest members of the public when there is no factual basis to suspect the individual has committed a crime.

123. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

124. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

125. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally, search, and falsely arrest individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these searches, arrests, and criminal prosecutions, without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers searching, falsely arresting and maliciously prosecuting individuals without a factual basis supporting a legal reason to do so.

126. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of defendant City of New York, which is forbidden by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

127. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and

discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless seizures, searches, arrests, and prosecutions.

128. The City of New York has acted with deliberate indifference to the Fourth and Fourteenth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of her rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

129. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein

JURY DEMAND

130. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff MARK BROASTER THOMPSON demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recovers the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
October 7, 2022

By: David Hazan
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein, I maintain my office.

DATED: New York, New York
October 7, 2022

David Hazan

DAVID M. HAZAN